



U.S. Department
of Transportation

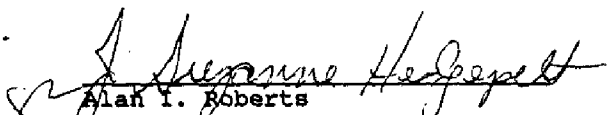
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9825 (EXTENSION)
ORIGINAL April 19, 1989
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9825 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 26 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Sequoyah Fuels Corporation
Gore, OK

November 24, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9825
(SECOND CORRECTED COPY)

1. Sequoyah Fuels Corporation, Gore, Oklahoma, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer DOT Specification MC 312-SS cargo tanks containing uranium raffinate sludge slurry for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the sludge to be described as Low Specific Activity (LSA) at a specific activity greater than that normally allowed for liquids transported in the DOT Specification MC 312 cargo tank, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on the application letters from Sequoyah Fuel Corporation dated July 9, and October 26, 1987, submitted in accordance with 49 CFR 107.103 and supplemental letter dated February 7, 1989.
3. HAZARDOUS MATERIALS (Descriptor and class). Uranium raffinate sludge slurry, transported as unpackaged bulk liquid LSA radioactive material, classed as radioactive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Radioactive material, low specific activity, n.o.s.
5. REGULATION AFFECTED. 49 CFR 173.425 (c)(2)(ii).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES.
 - (a) The radioactivity per gram of the transported materials shall not exceed 75% of the limits specified in 49 CFR 173.403(n)(4).
 - (b) The uranium raffinate sludge slurry shall have the following physical properties as described in the Sequoyah Fuels application:
1.) a specific gravity less than 1.4; 2.) a viscosity greater than 15 centipoise; and 3.) the majority of the radioactivity in the sludge is in the form of an insoluble compound.
 - (c) The MC 312-SS unloading pressure shall not exceed the design pressure (35 psig) and the MC 312-SS cargo tank shall be ASME Code "U" stamped.
 - (d) The MC 312-SS cargo tanks used under this exemption shall not be used for transport of any other product until the tank is thoroughly cleaned and purged of residues, the removable radioactive contamination is as low as reasonably achievable (substantially less than limits of 49 CFR 173.443(a)), and a copy of the survey of the cleaned cargo tank (including wipe samples inside the tank) has been provided to and approved in writing by this office.

(e) Operators of the vehicle transporting these cargo tanks shall be instructed in the hazards of the material and the emergency procedures to be followed in the event of an accident.

(f) Prior to departure with a loaded cargo tank, the operator shall ensure that the vehicle is in good condition and fully road worthy, that present and expected weather and road conditions are safe, and the necessary radiation and contamination level measurements of the loaded tank have been made. At appropriate times during transit, no less frequent than every 2 hours or every 100 miles, the operator shall stop in a safe location to examine the vehicle for road worthiness and to ensure that existing and expected road and weather conditions are safe. The vehicle shall not be put in transit unless it is road worthy and the existing and expected road and weather conditions are safe.

8. SPECIAL PROVISIONS.

(a) With the shipping documents for each shipment there shall be: (1) a copy of this exemption; (2) a copy of the Sequoyah Fuels Corporation Transportation Accident Response Plan; (3) a separate and conspicuous listing of the names and phone numbers of the state authorities to be contacted in the event of an accident releasing radioactive material; (4) information which will include a description of the radioactive product, company persons to contact, and suggested emergency procedures for use by emergency service personnel if the operator is incapacitated; and (5) a statement signed and dated by the vehicle operator and a Sequoyah official that the operator has been properly trained for this operation.

(b) Each cargo tank shall be durably marked on opposite sides and the rear with "DOT-E 9825" with figures 3 inches high on a contrasting background. This marking shall be adjacent to the orange panel bearing the UN identification number UN 2912.

(c) When a MC 312-SS that has been used under this exemption is released for use to transport other products the marking "DOT-E 9825" shall be thoroughly removed. This marking may not be removed until this office has approved in writing the final survey report.

(d) Each motor carrier conducting transport operations under this exemption must have a safety rating, as assigned by the Office of Motor Carrier Safety Field Operations (OMCSFO) Federal Highway Administration, of "Satisfactory"

9. REPORTING REQUIREMENTS.

(a) In addition to the reporting requirements of 49 CFR 171.15 and 171.16, any incidents involving loss, or suspected loss of the radioactive contents or any severe vehicular accident shall be reported to the Office of Hazardous Materials Transportation by telephone as soon as practicable.

(b) The Office of Hazardous Materials Transportation shall be provided a copy of the record of each contamination survey of MC 312-SS cargo tanks that are released for the transport of other products.

10. EXPIRATION DATE. April 15, 1990.

Issued at Washington, D.C.:

APR 19 1989


Alan I. Roberts, Director
Office of Hazardous Materials
Transportation

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA